

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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GARETH HENDRICKSON,

Plaintiff,

-against-

POLICE OFFICER NICHOLAS MCGARRY, Shield No.
5276 and SERGEANT ADRIAN URUCI, TAX NO.
921827,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 12, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER NICHOLAS MCGARRY, Shield No. 5276, 42nd Precinct, 830
Washington Ave, Bronx, NY 10451
SERGEANT ADRIAN URUCI, TAX NO. 921827, Criminal Intelligence Section, One
Police Plaza, Room 1108, New York, NY, 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, GARETH HENDRICKSON, by his attorneys, Jacobs & Hazan, LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On November 20, 2015, at approximately 8:00 a.m., plaintiff, Gareth Hendrickson, while lawfully inside of his girlfriend's apartment located at 1420 Washington Avenue, Apt. 7A, Bronx, New York, was subject to an unlawful search, detention, false imprisonment and false arrest by the defendant New York City police officers. Plaintiff was then transported to the 42nd precinct, where he was strip searched without his consent, causing humiliation and emotional trauma. Thereafter, plaintiff was maliciously prosecuted and denied a right to a fair trial until March 27, 2017 when all charges against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, unlawfully strip searched, denied his rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. On the date of the subject incident, plaintiff GARETH HENDRICKSON was a resident of the State of New York.

3. POLICE OFFICER NICHOLAS MCGARRY, Shield No. 5276, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER NICHOLAS MCGARRY, Shield No. 5276, is and was at all times relevant herein, assigned to the 42nd Precinct.

5. POLICE OFFICER NICHOLAS MCGARRY, Shield No. 5276, is being sued in his individual and official capacity.

6. SERGEANT ADRIAN URUCI, TAX NO. 921827, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ADRIAN URUCI, TAX NO. 921827, is and was at all times relevant herein, assigned to the Criminal Intelligence Section.

8. SERGEANT ADRIAN URUCI, TAX NO. 921827, is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On November 20, 2015, at approximately 8:00 a.m., plaintiff was lawfully inside of his girlfriend's apartment, located at 1420 Washington Avenue, Apt. 7A, Bronx, New York.

15. The defendant police officers then unlawfully entered and searched the individuals present at 1420 Washington Avenue, Apt. 7A, Bronx, New York, without reasonable suspicion, probable cause, or any legal justification.

16. At the time the defendant officers unlawfully entered 1420 Washington Avenue, Apt. 7A, Bronx, NY, plaintiff was having sex with his girlfriend.

17. The unlawful and sudden entry of the defendant officers into the apartment while he was having sex caused plaintiff extreme humiliation and fear.

18. At no time were any illegal drugs, guns, or contraband found on plaintiff's person, or in plaintiff's possession, custody, or control.

19. The defendant officers knew that plaintiff was a guest at 1420 Washington Avenue, Apt. 7A, Bronx, New York and did not live there.

20. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

21. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

22. Nevertheless, plaintiff was handcuffed and falsely arrested by the defendants and transported to the 42nd Precinct, where he was photographed, searched, fingerprinted, and then placed in a holding cell by the defendants.

23. At the precinct, defendants conducted an unlawful strip search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search, and had no reason to believe plaintiff was hiding contraband on his person.

24. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

25. The illegal strip search of plaintiff conducted by the defendant officers at the 42nd Precinct caused plaintiff to feel humiliation, emasculation, and emotional anguish.

26. After approximately 12 hours in custody at the 42nd precinct, plaintiff was transported to Bronx County Central Booking and placed in a holding cell with prisoners who have been accused of serious and possibly violent crimes.

27. While being unlawfully detained at Central Booking, plaintiff suffered bed bug bites. Plaintiff alerted staff and requested to be transferred to another cell area but was refused any assistance.

28. The condition of the cell where plaintiff was detained in Central Booking was the direct and proximate cause of plaintiff's painful bed bug bites.

29. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

30. Specifically, the defendant officers falsely informed the District Attorney that plaintiff was found in possession of controlled substances despite the fact that the substances that the defendants allege to have found inside of 1420 Washington Avenue, Apt. 7A, Bronx, New York, were not demonstrated to have been in plaintiff's possession, custody, or control.

31. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

32. On November 21, 2015 at approximately 9:00 a.m., after being unlawfully detained for approximately 24 hours, plaintiff was arraigned in Bronx Criminal Court, charged with crimes he did not commit, and released on his own recognizance.

33. Plaintiff was unlawfully charged with PL Section 220.03 - Criminal Possession of a Controlled Substance in the Seventh Degree, PL Section 220.50(2) - Criminally Using Drug Paraphernalia in the Second Degree, and PL Section 221.05 - Unlawful Possession of Marijuana.

34. Thereafter, plaintiff appeared in Court on approximately 8 occasions before all charges were dismissed and sealed in their entirety on March 27, 2017.

35. As a result of the false arrest and imprisonment of plaintiff, plaintiff missed a job interview that he was supposed to attend on November 20, 2015.

36. As a result of the defendant officer unlawfully entering plaintiff's home and falsely arresting plaintiff while he was having sex with his girlfriend, plaintiff has suffered severe anxiety, causing his relationship and sex life with his girlfriend to suffer.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure strip search, and false arrest of plaintiff.

38. The unlawful search, false arrest, and false imprisonment, unlawful strip search, and denial of a right to fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of his right to fair trial without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search plaintiff.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

55. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

56. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

57. In withholding/creating false evidence against plaintiff Gareth Hendrickson and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional rights to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

58. As a result of the foregoing, plaintiff Gareth Hendrickson sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Unlawful Strip Search

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

68. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and he sustained great emotional injuries.

JURY DEMAND

69. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Gareth Hendrickson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 12, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER NICHOLAS MCGARRY, Shield No. 5276, 42nd Precinct, 830 Washington Ave, Bronx, NY 10451
SERGEANT ADRIAN URUCI, TAX NO. 921827, Criminal Intelligence Section, One Police Plaza, Room 1108, New York, NY, 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 12, 2018

/s/
STUART E. JACOBS